



Province of Alberta

CHILD, YOUTH AND FAMILY ENHANCEMENT ACT

PUBLICATION BAN (COURT APPLICATIONS AND ORDERS) REGULATION

Alberta Regulation 207/2014

With amendments up to and including Alberta Regulation 76/2023

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Office Consolidation

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(Consolidated up to 76/2023)

ALBERTA REGULATION 207/2014

Child, Youth and Family Enhancement Act

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AND ORDERS) REGULATION**

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Schedule

Definitions

1 In this Regulation,

- (a) “Act” means the *Child, Youth and Family Enhancement Act*;
- (b) “publication ban” means an order of the Court under section 126.3(3) of the Act that no person shall publish, in a manner that reveals that a deceased child received intervention services, the name or a photograph of the deceased child, of any parent or guardian of the deceased child or of any other individual identified in the order.

Court practice and procedure

2(1) In any matter not provided for in the Act or the regulations under it, the Court may follow the *Alberta Rules of Court* and the procedures of the Court of King’s Bench.

(2) The Court may give directions respecting any practice or procedure in the Court.

(3) The Court on application may

- (a) vary a rule of practice or procedure,
- (b) refuse to apply a rule of practice or procedure, or
- (c) direct that some other practice or procedure be followed.

AR 207/2014 s2;218/2022

Non-compliance with this Regulation

3(1) Unless the Court so directs, non-compliance with this Regulation does not render any act or proceeding void, but the act or proceeding may be set aside either wholly or in part as irregular or amended or otherwise dealt with.

(2) No proceeding shall be defeated on the ground of an alleged defect of form.

Personal service

4(1) Personal service is effected on an individual by leaving with the individual a copy of the document to be served.

(2) Personal service is effected on a corporation by leaving a copy of the document to be served with the mayor, reeve, president, chairman or other head officer by whatever name that person is known, or with the manager, office manager, cashier, secretary or agent.

Application

5(1) An application for a publication ban under section 126.3(2) of the Act is to be commenced by completing and filing Form 1 prescribed in the Schedule with the clerk of the Court before the Court hears the application.

(2) A publication ban may be in Form 2 of the Schedule.

(3) An application under section 126.3(5) of the Act for an order setting aside a publication ban is to be commenced by completing and filing Form 3 prescribed in the Schedule with the clerk of the Court before the Court hears the application.

(4) An order under section 126.3(5) of the Act setting aside a publication ban may be in Form 4 of the Schedule.

(5) Notwithstanding subsections (1) and (3), the Court may hear an application before the relevant form is filed with the clerk of the Court.

(6) Notwithstanding subsections (1) and (3), notice of an application is not insufficient merely because the relevant form was not filed before it was served on the person notified.

Service of orders

6 A publication ban ordered under section 126.3(3) of the Act or an order under section 126.3(5) of the Act setting aside a publication ban must be served on

- (a) the parents of the deceased child in respect of whom the order is made,
- (b) the guardians, if any, of the deceased child,
- (c) all other individuals, if any, identified in the order, and
- (d) a director, unless a director applied for the order.

Consequential amendments

7(1) The *Court Rules and Forms Regulation* (AR 39/2002) is amended by this section.

(2) Section 2(1) is amended by striking out “this Regulation” and substituting “the regulations under it”.

(3) Section 5(1) is amended by adding “, other than under section 126.3 of the Act,” after “the Act”.

(4) Section 5.1 is amended by adding “, other than an order under section 126.3 of the Act,” after “of the court”.

Expiry

8 For the purpose of ensuring that this Regulation is reviewed for ongoing relevancy and necessity, with the option that it may be repassed in its present or an amended form following a review, this Regulation expires on September 30, 2027.

AR 207/2014 s8;180/2022

Coming into force

9 This Regulation comes into force on the coming into force of section 126.3 of the *Child, Youth and Family Enhancement Act*.

(NOTE: Despite section 9, this Regulation came into force on the date it was filed — November 27, 2014; see section 2 of the Regulations Act.)

Schedule**Form 1****Application for an Order
Prohibiting Publication**

In the Alberta Court of Justice in the Matter of an
Application under section 126.3(2) of the *Child,
Youth and Family Enhancement Act*.

Regarding the child

_____, born (date-yyyy/mm/dd), a
deceased child who received intervention services under the *Child,
Youth and Family Enhancement Act*

1 My name is (name of applicant) .

☐ I am a family member of the deceased child within the
meaning of section 126.3(1) of the Act. My relationship to the
child is

- ☐ I am the deceased child's parent.
- ☐ I am the deceased child's guardian.
- ☐ I am the deceased child's grandparent.
- ☐ I am the deceased child's sibling.
- ☐ I stand in the place of a parent with respect to the
deceased child.

☐ I have the authority to act for the director.

☐ I am seeking permission from the Court to make this
application

Application

2 I am applying for an order prohibiting publication of the name
and photograph of the deceased child, any parent of the deceased
child and any guardian of the deceased child in a manner that
reveals that the deceased child received intervention services.

☐ I am also applying for an order prohibiting publication of the
name and photograph of the following individual(s) in a manner
that reveals that the deceased child received intervention services:

_____(name)_____, born _____(date-yyyy/mm/dd)_____
_____(name)_____, born _____(date-yyyy/mm/dd)_____
_____(name)_____, born _____(date-yyyy/mm/dd)_____

Affidavit

3 In support of my application, I make oath and say that:

☐ “(check only if you are seeking permission from the Court to apply) I believe that the Court should grant me permission to make this application because:

_____.

☐ I believe that publication of the name and photograph of the deceased child, any parent of the deceased child and any guardian of the deceased child in a manner that reveals that the deceased child received intervention services should be prohibited because:

_____.

☐ I believe that publication of the name and photograph of _____(name)_____, born _____(date-yyyy/mm/dd)_____
_____(name)_____, born _____(date-yyyy/mm/dd)_____
_____(name)_____, born _____(date-yyyy/mm/dd)_____

in a manner that reveals that the deceased child received intervention services should be prohibited because: _____

_____.

☐ I believe that the deceased child’s sibling(s), namely

_____(name)_____, born _____(date-yyyy/mm/dd)_____
_____(name)_____, born _____(date-yyyy/mm/dd)_____
_____(name)_____, born _____(date-yyyy/mm/dd)_____

is/are receiving intervention services and that the order would be in their best interests because: _____

_____.

☐ I believe that publication of the name and photograph of the deceased child, any parent of the deceased child and any guardian of the deceased child in a manner that reveals that the deceased

child received intervention services would be contrary to the known wishes of the deceased child. The grounds for my belief are

_____.

☐ I believe that there are other grounds for prohibiting the publication, which include _____

_____.

SWORN BEFORE ME at the _____ of _____)
_____, in the Province of Alberta, the _____)
____ day of _____, _____.) (Applicant's Signature)
_____) (date-yyyy/mm/dd)
(Commissioner for Oaths _____)
in and for the Province of Alberta) _____)

Form 2

In the Alberta Court of Justice in the Matter of an
Application under section 126.3(2) of the *Child,
Youth and Family Enhancement Act*.

Regarding the child

_____, born (date-yyyy/mm/dd), a
deceased child who received intervention services under the *Child,
Youth and Family Enhancement Act*

Heard Before

The Honourable Justice _____ at (time) a.m./p.m. on
_____, (day of the week), the
(number) day of
(month), (year)
at _____, Alberta.

ORDER PROHIBITING PUBLICATION

(name of applicant) *(add if required: acting on the authority of the director)* has applied for an order prohibiting publication, in a manner that reveals that the deceased child received intervention services, of the name and photograph of the deceased child, any parent of the deceased child and any guardian of the deceased child *(add if required: and the following individual(s):*

_____(name)_____, born _____(date-yyyy/mm/dd)_____
_____(name)_____, born _____(date-yyyy/mm/dd)_____
_____(name)_____, born _____(date-yyyy/mm/dd)_____

AND on being satisfied, having regard to the matters referred to in section 126.3(3)(a), (b) and (c) of the Act, that it would be appropriate to make the order,

IT IS ORDERED THAT no person shall publish the name or photograph of any of the following individuals in a manner that reveals that the deceased child received intervention services:

_____(name)_____, born _____(date-yyyy/mm/dd)_____
_____(name)_____, born _____(date-yyyy/mm/dd)_____
_____(name)_____, born _____(date-yyyy/mm/dd)_____

Dated this ____ day of ____ at ____ in the Province of Alberta.
_____(name of justice)_____

Form 3
Application for an Order Setting
Aside a Publication Ban

In the Alberta Court of Justice in the Matter of an
Application under section 126.3(5) of the *Child,*
Youth and Family Enhancement Act.

Regarding the child

_____, born _____(date-yyyy/mm/dd)_____, a
deceased child who received intervention services under the *Child,*
Youth and Family Enhancement Act

1 My name is _____(name of applicant)_____. I am not a family member of the deceased child within the meaning of section 126.3(1) of the Act.

Application

2 I am applying under section 126.3(5) of the Act for an order setting aside the order of Justice _____(name of justice, if known)_____ of the Court of Justice sitting at _____(city/town)_____, Alberta on _____(date of Court of Justice hearing)_____, 20 _____(year)_____. The Justice ordered _____(nature of the ordered publication ban)_____.

I seek an order allowing publication, in a manner that reveals that the child received intervention services, of the name and photograph of the deceased child, any parent or guardian of the deceased child and any other individual(s) identified in the ordered publication ban.

Affidavit

3 In support of my application, I make oath and say that:

☐ I was served with a copy of the order containing the publication ban.

☐ I seek an order setting aside the ordered publication ban because: _____

_____.

SWORN BEFORE ME at the _____ of _____)
_____, in the Province of Alberta, the _____)
_____, day of _____, _____.) (Applicant's Signature)
_____) (date-yyyy/mm/dd)
(Commissioner for Oaths _____)
in and for the Province of Alberta) _____)

Form 4

In the Alberta Court of Justice in the Matter of an
Application under section 126.3(5) of the *Child,
Youth and Family Enhancement Act*.

Regarding the child

_____, born (date-yyyy/mm/dd), a
deceased child who received intervention services under the *Child,
Youth and Family Enhancement Act*

Heard Before

The Honourable Justice _____ at (time) a.m./p.m. on
_____, (day of the week), the
_____, (number) day of
_____, (month), (year)
at _____, Alberta.

ORDER SETTING ASIDE A PUBLICATION BAN

(name of applicant) (add if required: acting on the authority of
the director) has applied for an order setting aside the order of
Justice (name of justice, if known) of the Court of Justice
sitting at (city/town), Alberta on (date of Court of Justice
hearing), 20 (year). The Justice ordered (nature of the
ordered publication ban) :

AND on being satisfied that it would be appropriate to make the
order,

IT IS ORDERED THAT the order is set aside and any person may publish the name and photograph of the following individuals in a manner that reveals that the deceased child received intervention services:

____ (name) _____, born (date-yyyy/mm/dd) _____
____ (name) _____, born (date-yyyy/mm/dd) _____
____ (name) _____, born (date-yyyy/mm/dd) _____

Dated this ____ day of ____ at ____ in the Province of Alberta.

____ (name of justice) _____

AR 207/2014 Sched.;85/2016;76/2023



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